

BC582034 BC582034

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-03

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Case Number: BC582034 Hearing Date: August 3, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 3, 2026

Case Name: Emtex Textiles USA Inc. v. JBL Cal Apparel, Inc., et al.

Case No.: BC582034

Matter: Motion to Enforce Settlement

Moving Party: Plaintiff Emtex Textiles USA Inc.

Responding Party: Defendants Louis and James Wang

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Emtex Textiles USA Inc. seeks to enforce its settlement with Defendants.

The Court is authorized to enter judgment pursuant to a stipulated settlement. (Code Civ. Proc. § 664.6.) In reviewing a motion to enforce a settlement, the Court determines “whether the parties entered into a valid and binding settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) “A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Id. at pp. 1182-1183; see also Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1357 [“Strong public policy in favor of the settlement of civil cases gives the trial court, which approves the settlement, the power to enforce it”].)

Because (1) a valid settlement agreement exists and (2) the Court has retained jurisdiction, the Court will enter a judgment consistent with the settlement and stipulation. However, the Court will not award \$71,385 in interest from May 9, 2011, which the Court considers to be an unlawful penalty.

Defendants seek a \$50,000 setoff, but Defendants waived their defenses when they settled the case.

The Motion is granted in part. The Court will enter judgment in the amount of \$47,598.72 but will not award \$71,385 in interest. The Court will not award fees/costs because they were requested for the first time in Plaintiff’s Reply Brief.

Moving party to give notice and provide a proposed judgment.